Showing contexts for: **title dispute** in T. Rameshwar vs Commissioner, Municipal Corporation ... on 18 March, 2006

Context size: Small | Current | Large | Larger

1. The **dispute** in these two writ petitions is in relation to a piece of land admeasuring 1022 Sq. yards bearing MCH No. 2-2-63/1 in Survey No. l 19 situated at Bagh Amberpet, Hyderabad (hereafter called, the subject property). There is no **dispute** however that the father of T. Rameshwar and the husband of the lessor of S. Jagadeeshwar Rao (fourth and third respondents in W.P. No. 23731 of 2005) were joint owners of the total extent of land admeasuring 2200 Sq. yards. After death of her husband, Namuri Lakshmamma, W/o. Anjaiah Goud along with her sons claimed to have succeeded to the property. She executed a lease deed in respect of the subject property in favour of third respondent, who obtained a dealership from the Indian Oil Corporation Limited (IOCL, the petitioner in W.P. No. 23731 of 2005), who in turn executed another document in favour of the petitioner subleasing the premises for setting up petroleum outlet. So as to set up/ construct such outlet, the petitioner on its own submitted an application to the Municipal Corporation of Hyderabad (MCH) under Sections 428 and 433 of Hyderabad Municipal Corporations Act, 1955 (HMC Act, for short) on 10.2.2005. In the meanwhile, the fourth respondent filed a writ petition being W.P. No. 14025 of 2005 before this Court seeking a writ of mandamus directing the MCH and District Collector, Hyderabad not to accord any permission including the permission to make constructions on the subject property. In W.P. No. 23731 of 2005, the fourth respondent allege that he filed a suit being O.S. No. 4185 of 2004 on the file of the Court of the VII Senior Civil Judge, City Civil Court, Hyderabad for cancellation of the lease deed executed by Lakshmamma in favour of third respondent and, therefore, pending such suit if any permission is granted he

would suffer legal wrong. This Court while admitting W.P. No. 14025 of 2005 on 18.7.2005 observed that any construction made by the IOCL, would be subject to result of the writ petition. On 19.7.2005 (a day after this Court admitted W.P. No. 14025 of 2005), MCH through its Chief City Planner addressed a communication dated 19.7.2005 to the petitioner informing that the application submitted by them cannot be considered as there is a **title dispute** among the legal heirs in respect of the subject property. Feeling aggrieved by the same, IOCL filed W.P. No. 23731 of 2005. Thus for and hereafter the description/reference to the parties is in accordance with their status as they are arrayed in W.P. No. 23731 of 2005.

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2. The petitioner besides averring the background as above, further states that the fourth respondent filed LA. No. 1711 of 2004 in O.S. No. 4185 of 2004 for ad interim injunction restraining IOCL from changing the nature of the property by making constructions. The said I.A., was dismissed by the trial Court on 17.1.2005, that thereafter the petitioner filed W.P. No. 14025 of 2005 for a direction to the MCH not to accord any permission for construction of petroleum outlet, that this Court only observed that any construction made by the petitioner would be subject to result of the writ petition and, therefore, it was wrong for MCH to reject the building permission on the ground that there is a **title dispute**. Secondly, it is contended that even according to the fourth respondent, Lakshmamma and her son are en**titled** to half share in the entire extent of 2200 Sq.yards and, therefore, the lease executed by them in favour of the third respondent is not rendered illegal or unenforceable. Thirdly, it is the contention of the petitioner that when it has submitted all the documents along with the application under Section 428 of HMC Act, the building application was not considered on a complaint petition submitted by the fourth respondent without giving any notice to the petitioner or third respondent and, therefore, the same is unsustainable.

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4. Learned Counsel for the petitioner and learned Counsel for the third respondent, who are sailing together, submit that on a mere allegation that there is a **title dispute** to the property where the construction is proposed, the MCH cannot refuse to consider the grant of permission. Strong reliance is placed on a Division Bench judgment of this Court in Subash Kumar Lohade v. MCH 1985 (1) APLJ 20 (DB), and the judgment of the Single Judge of this Court in Hyderabad Potteries Pvt. Ltd. v Collector, Hyderabad District . Secondly, they would urge that the petitioner has submitted application duly enclosing all the necessary documents and also submitted revised plan on 16.4.2005. At that stage, the fourth respondent submitted a complaint and the same was taken into consideration while rejecting permission without giving any notice to the petitioner or the second respondent. According to the learned Counsel, the rejection of the petitioner's application without notice is unsustainable.

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5. As noticed supra, the fourth respondent in W.P. No. 23731 of 2005 is the petitioner in W.P. No. 14025 of 2005. In both the matters, he is represented by Sri T.P. Acharya, learned Counsel. He submits that when there is a **title dispute**, the Commissioner, MCH, cannot issue any building permission and that the dismissal of the LA. filed by the fourth respondent does not in any manner alter the situation.

6. Section 428 of HMC Act requires every person intending to erect building to give notice to the Commissioner specifying the position of the building, the description and the purpose for which it is intended, the dimensions and the name of the person whom he intends to employ to supervise the erection. Section 429 of HMC Act enumerates the documents, which are to be furnished to the Commissioner. Under Section 429(1)(aa) of HMC Act, a copy of the **title** deed of the land duly attested by a Gazetted Officer of the Government together with an urban land ceiling clearance certificate or as the case may be an affidavit referred to in Section 388 has to be compulsorily enclosed. Section 438 of HMC Act requires the Commissioner to record reasons for disapproving any building or work of which notice has been given under Section 428 of HMC Act. Section 439 of HMC Act empowers the Commissioner to

withhold disposal of plans in certain circumstances. While considering the grant of building permission or rejecting building permission, the Commissioner is also required to adhere to the Municipal Corporation Building Bye-laws, 1981 (Building Byelaws, for short). Byelaw 4.2(v) of Building Bye-laws requires every application for building permit to be accompanied by attested copy of the original sale deed/lease deed and attested copy of Revenue Survey Sheet/Municipal Survey Sheet, and affidavit acceptable to the Commissioner, MCH in proof of ownership. Bye-law 6.2 of Building Bye-laws requires clearance of sites adjoining Government property and such clearance has to be produced either from the Government, military authority or statutory authority as the case may be.